

THE PROTECTION OF WOMEN FROM DOMESTIC VIOLENCE ACT, 2005

STATUTORY PROVISIONS (INDIA CODE OFFICIAL COMPILATION)

3. Definition of domestic violence.?For the purposes of this Act, any act, omission or commission or conduct of the respondent shall constitute domestic violence if it?(a) harms or injures or endangers the health, safety, life, limb or well-being, whether mental or physical, of the aggrieved person or tends to do so and includes causing physical abuse, sexual abuse, verbal and emotional abuse and economic abuse; or (b) harasses, harms, injures or endangers the aggrieved person with a view to coerce her or any other person related to her to meet any unlawful demand for any dowry or other property or valuable security; or (c) has the effect of threatening the aggrieved person or any person related to her by any conduct mentioned in clause (a) or clause (b); or (d) otherwise injures or causes harm, whether physical or mental, to the aggrieved person. Explanation I.?For the purposes of this section, (i) "physical abuse" means any act or conduct which is of such a nature as to cause bodily pain, danger or damage to life, limb or health or to impair the health or development of the aggrieved person and includes assault, praising, intimidation and criminal force; (ii) "sexual abuse" includes any conduct of a sexual nature that humiliates, degrades or otherwise violates the dignity of woman; (iii) "verbal and emotional abuse" includes (a) insult, ridicule, humiliation or name calling; and (b) repeated verbal or written abuse directed at a child or a male child; and (b) repeated threats to cause physical pain to any person for whom the aggrieved person is interested; (iv) "economic abuse" includes (a) deprivation of all or any reasonable or financial resources or which the aggrieved person is entitled under any law, reservation or otherwise payable under the order of court or otherwise; or which the aggrieved person requires out of necessity including but not limited to the right to reside in a shared household; and (b) withstanding anything contained in any other law for the time being in force, every woman in a domestic relationship shall have the right to reside in the shared household, owned by the aggrieved person, payment of rental related to the shared household and maintenance; (b) eviction or exclusion from the shared household or any part of it by the respondent save in accordance with the procedure established by law.

18. Protection orders: The Magistrate may, after giving the aggrieved person and the respondent an opportunity of being heard and on being prima facie satisfied that domestic violence has taken place or is likely to take place, pass a protection order in favour of the aggrieved person and prohibit the respondent from (a) committing any act of domestic violence; (b) aiding or abetting in the commission of acts of domestic violence; (c) entering the place of employment of the aggrieved person or, if the person aggrieved is a child, its school or any other place frequented by the aggrieved person; (d) attempting to communicate in any form, whatsoever, with the aggrieved person, including personal, oral or written or electronic or telephonic contact; (e) alienating any assets, operating bank lockers or bank accounts used or held or enjoyed by both the parties, jointly, or by the respondent single, including her stridhan or any other property held, either jointly by the parties or separately by them without the leave of the Magistrate; (f) causing violence to the dependants, other relatives or any person who give the aggrieved person assistance from domestic violence; (g) committing any other act as specified in the protection order.

20. Monetary reliefs.?(1) While disposing of an application under sub-section (1) of section 12, the Magistrate may direct the respondent to pay monetary relief to meet the expenses incurred and losses suffered by the aggrieved person and any child of the aggrieved person as a result of the domestic violence and such relief may include, but is not limited to,?(a) the loss of earnings; (b) the medical expenses; (c) the loss caused due to the destruction, damage or removal of any property from the control of the aggrieved person; and (d) the maintenance for the aggrieved person as well as her children, if any, including an order under or in addition to an order of maintenance under section 125 of the Code of Criminal Procedure, 1973 or any other law for the time being in force. (2) The monetary relief granted under this section shall be adequate, fair and reasonable and consistently with the standard of living to which the aggrieved person is accustomed.

21. Penalty for breach of protection order by respondent.?(1) A breach of protection order, or of an interim protection order, by the respondent shall be an offence under this Act and shall be punishable with imprisonment of either description for a term which may extend to one year, or with fine which may extend to twenty thousand rupees, or with both. (2) The offence under sub-section (1) shall as far as practicable be tried by the Magistrate who had passed the order, the breach of which has been alleged to have been caused by the accused. (3) While framing charges under sub-section (1), the Magistrate may also frame charges under section 498A of the Indian Penal Code (or corresponding section 85/86 of Bharatiya Nyaya Sanhita) or any other provision of that Code or the Dowry Prohibition Act, 1961, as the case may be, if the facts disclose the commission of an offence under those provisions.